

AK.2 Permit Application Checklist

What to assemble on both Alaska paths — the one where a government reviews your house, and the far commoner one where none does and the requirements arrive from somewhere else entirely.

Before you use this document

This is a process reference, not legal advice. Alaska has no statewide residential building code and, over most of its land area, no local building department either — so what binds your house is a short stack of *state* rules that apply whether or not anyone inspects, plus whatever your borough, your city, your lender and your utility require on top. Confirm every item with the office that will actually decide it before you rely on it. Work AK.4 first. Which half of this document applies to you depends on whether your parcel has a building authority at all.

TWO PATHS, AND EVERYONE WALKS PART OF BOTH

Alaska owner-builders divide into two groups, and the division is not the one people expect. It is not "regulated" versus "unregulated." It is **whether a single office assembles the requirements for you**. Where a building department exists, it hands you a list. Where none does, the requirements do not disappear — they scatter across a state agency, a federal one, a borough platting office, a utility, and your lender, and **nobody assembles them for you**. That is what the rest of this document is.

Which half of this document is yours

Your situation	What it means for this checklist
A building department reviews your house	Anchorage, Juneau, Sitka, and a number of cities. You will get a plan review, a permit, a printed inspection card, and a certificate of occupancy at the end. Work Steps 1-5 below, then hand the department its own application on top.
No building department reviews your house	Most of Alaska by land area, and much of it by population — including large, growing, road-connected communities. There is no application to file for the dwelling itself. Work Steps 1-4 , and treat Step 2 and the statewide floor below as the requirements they are.

THE STATEWIDE FLOOR — WHAT BINDS YOU WITHOUT A PERMIT

These apply to a house in the unorganized borough with no permit, no plan review and no inspector, exactly as they apply to a house in Anchorage. None of them is enforced by a building department, which is why they are so often missed.

Applies whether or not anyone issues you a permit

Requirement	What it actually is	Authority
Smoke and carbon monoxide alarms	Required by statute in every dwelling unit in the state . See the box below — this one is a criminal statute and it is the requirement Alaska owner-builders most often do not know exists.	AS 18.70.095; 13 AAC 50.030(b)
The 2020 National Electrical Code	"Constitutes the minimum electrical code for the state." Your homeowner exclusion is from the license, not the code (AK.1). Nobody inspects a single-family house, and knowing violation is still a misdemeanor.	8 AAC 70.025(a); AS 08.40.180
The 2018 Uniform Plumbing Code	Adopted "as the minimum plumbing standards to be followed throughout the state." In a community of 2,500 or more it is also inspected by the State; below that the community is exempt from the chapter.	8 AAC 63.010(a)(1); AS 18.60.735
Lead limits in the water system	Pipe or fittings containing more than 8.0 percent lead, and solder or flux containing more than 0.2 percent , are prohibited in plumbing "of a residential ... facility that provides water for human consumption." Buy accordingly.	AS 18.60.705(b)
Onsite wastewater	Regulated statewide by the Department of Environmental Conservation under 18 AAC 72 , or by the local program where DEC has delegated it. On most rural parcels this is the <i>only</i> approval you will need — and the one with the longest lead time. Step 2.	18 AAC 72

The requirement that follows you into the empty quarter

Alaska's fire and building regulation is capped by statute: the Department of Public Safety may set standards for "*buildings used for residential purposes containing **four or more dwelling units***" (AS 18.70.080(a)(2)), and the code it adopts excludes "*Detached one-, two-, and three-family dwellings*" in terms (13 AAC 50.020). Your house is outside the whole apparatus. Which is why almost nobody notices the sentence sitting fifteen sections away, in the statute itself rather than in the regulation:

"Smoke detection devices shall be installed and maintained in all dwelling units in the state, and carbon monoxide detection devices shall be installed and maintained in all qualifying dwelling units in the state. The smoke detection devices must be of a type and shall be installed in a manner approved by the state fire marshal." (AS 18.70.095(a))

All dwelling units in the state. No unit-count threshold, no population threshold, no exemption for parcels without a building department. And the manner is not left to you: the regulation requires compliance with **NFPA 72-2019** and installation "*at a minimum ... in accordance with IBC Section 907.2.11,*" then adds the sentence that decides what you buy — "*Smoke detectors may be **solely battery operated** when installed in **existing buildings built before January 1, 1989** or in **buildings without commercial power.***" A new house on the grid is neither. (13 AAC 50.030(b))

A **qualifying** dwelling unit, for the carbon monoxide alarms, is one that "*contains or is serviced by a carbon-based-fueled appliance or device that produces by-products of combustion,*" or "*has an attached garage or carport,*" or "*is adjacent to a parking space.*" In Alaska that is very nearly every house ever built. (AS 18.70.095(d)(3))

It is enforced as a crime. A violation of AS 18.70.010 — 18.70.100 or a regulation adopted under them is a **class B misdemeanor**, and "*when not otherwise specified, each **10 days** that the violation or noncompliance continues is a separate offense*" — with the carbon monoxide provision carved down to a non-criminal violation. So the one construction requirement that reaches every dwelling in Alaska is also the only one carrying a criminal penalty, and it costs about a hundred dollars to satisfy. (AS 18.70.100(a), (c))

AS 18.70.080(a)(2), AS 18.70.095(a), (d)(3), AS 18.70.100(a), (c); 13 AAC 50.020 (2021 IBC, Section 101.2 Exception 1) and 13 AAC 50.030(b). Read at akleg.gov, August 2026. Hard-wired interconnected alarms are the practical consequence of IBC 907.2.11 for a new dwelling with commercial power — confirm the placement schedule against NFPA 72 and the state fire marshal's guidance before rough-in, because this is cheap at rough-in and expensive afterwards.

Statewide floor — confirm each before you close a wall

	Item	Date	Notes / evidence
☐	Smoke alarms specified hard-wired and interconnected (battery-only is permitted only in pre-1989 buildings or buildings without commercial power) and located per NFPA 72-2019 / IBC 907.2.11		
☐	Carbon monoxide alarms specified — your house almost certainly qualifies if it has any combustion appliance, an attached garage or carport, or an adjacent parking space		
☐	Wiring specified and bought to the 2020 NEC		
☐	Plumbing specified to the 2018 UPC , and you have established whether your community is at or above 2,500 population Community pop.: _____ State inspection? Y/N: _____		

Statewide floor — confirm each before you close a wall

	Item	Date	Notes / evidence
☐	Pipe, fittings, solder and flux confirmed lead-free to the statutory limits before purchase		
☐	If you are installing a hydronic boiler, you have read the note below — the state installation notice is scoped to commercial sites and residential sites of six families or more, so a detached house is outside it		

The boiler notice that does not reach a house — and the reason to know why

Read AS 18.60.200(b) alone and you would file a notice: "*A person who installs a boiler or unfired pressure vessel **shall notify** the Department of Labor and Workforce Development of the installation, using a form provided by the department.*" No residential limit appears in it, and AS 18.60.210(b)(2) exempts residential heating boilers only from the separate periodic-certificate sections.

The department's own form settles it the other way. Its Notification of New Boiler Installation states that the information must be submitted "*within 30 days of installation at any commercial or residential (six families) site in the State of Alaska.*" A detached single-family house is outside that scope, and no notice is called for.

Worth knowing that the narrowing is **the agency's, not the statute's**. If you install something unusual — a pressure vessel, a large system, anything serving more than one dwelling — the statutory words are broad enough to ask about, and one call is cheaper than a wrong assumption.

STEP 1 — THE LAND, BEFORE ANYTHING ELSE

Alaska's expensive mistakes are made at this stage, and none of them is a paperwork mistake. Two of these — the geotechnical investigation and the wetlands determination — are the difference between a house and a loss, and neither is required by any Alaska permit.

Step 1 — Site and title

	Item	Date	Notes / who confirmed
☐	Deed recorded, parcel number confirmed, and the legal description matches what you are building on Parcel ID: _____ Recorded: _____		

Step 1 — Site and title

	Item	Date	Notes / who confirmed
☐	Geotechnical investigation ordered — non-negotiable on any site with possible permafrost, on a slope, or on fine-grained soils. Nothing in Alaska law requires this and nothing else will save you from it Firm: _____ Report date: _____		
☐	Survey and plot plan showing the building envelope, the wastewater system and its reserve area, the well, and the driveway — drawn together, because they compete for the same ground Surveyor: _____ Date: _____		
☐	Wetlands determination. Alaska holds an enormous share of the nation's wetlands and a Section 404 permit from the U.S. Army Corps of Engineers, Alaska District, is a real gate on a real number of parcels. Ask before you design the driveway, not after you have cut it Requested: _____ Outcome: _____		
☐	Floodplain status. Where your community participates in the National Flood Insurance Program a floodplain development permit is required in a mapped special flood hazard area <i>even with no building code</i> , and riverine and ice-jam flooding are ordinary Alaska risks In SFHA? Y/N: _____ Permit needed: _____ From: _____		
☐	Access and driveway approval — Alaska DOT&PF for a state-maintained road, the borough or city for theirs, or a recorded easement and a road association where the road is private Authority: _____ Permit / easement: _____		
☐	Physical address assigned by the borough or city addressing office. Utilities, deliveries and emergency services all need it, and it is usually free and slow Address: _____ Assigned: _____		

Step 1 — Site and title

	Item	Date	Notes / who confirmed
☐	Zoning or land use confirmed — setbacks, height, accessory buildings, and any waterfront or habitat setback. This exists in many Alaska boroughs that have <i>no</i> building code at all Setbacks F/S/R: _____ Confirmed by: _____		

STEP 2 — WASTEWATER AND WATER: THE LONG POLE

On a parcel with no building department this is normally the **only mandatory approval you will obtain**, and it is also the one with the longest lead time, because it depends on soil work that the ground has to be thawed to do. Start it a season ahead of everything else.

Onsite wastewater is regulated statewide by the Department of Environmental Conservation under **18 AAC 72**. In several parts of Alaska the program is run locally instead — the Municipality of Anchorage's on-site water and wastewater program is the largest — and where it is, the local rules are the ones that apply and they are commonly stricter. Establish which office regulates your parcel before you pay anyone for a soils test, and write the answer into AK.4.

Before you read a word of Alaska septic advice — check the section number

18 AAC 72 was rewritten effective October 1, 2023 and amended again on August 13, 2025. Three of the sections every older guide relies on now read, in the code itself, "*Repealed*" — **18 AAC 72.020** (separation distances), **72.025** (holding tanks) and **72.035** (conventional onsite systems).

If a website, a realtor or a contractor quotes you 18 AAC 72.020 for a setback, they are quoting a section that no longer exists. The live sections for a house are **18 AAC 72.501 — 72.560** for a conventional system, **72.601 — 72.660** for an alternative one, and **72.100** for the distances around a private well.

You may not simply dig it yourself. 18 AAC 72.400 provides that "*a person may not construct, install, or modify any part of a conventional onsite wastewater system unless that person is certified under 18 AAC 72.405 or approved under 18 AAC 72.410.*" But two of the three routes past that bar are open to an owner-builder, and one of them is **you, personally, after a DEC course** — which is far more permissive than most states and almost nobody knows it exists.

Three routes to a legal septic system — none of them needs a permit

Route	What it involves	Cost
Approved homeowner 18 AAC 72.511(c); 72.410	You install it yourself. Complete DEC's training course, apply, and pay the \$275 homeowner training fee. The approval covers your own owner-occupied residence and authorizes one system within a one-year period . You must still have the soils properly classified — see below.	\$275 training fee
Certified installer 18 AAC 72.511(a); 72.405	A contractor with DEC certification installs it. No prior DEC approval needed for a single private residence at not more than 1,500 gallons per day of design flow.	Their fee
Engineer design 18 AAC 72.511(b)	Up to 2,500 gpd with no prior approval <i>"if the system is installed by a person whose work is completed according to a registered engineer's design and the engineer inspects construction."</i> Required outright for alternative systems, holding tanks, waivers, and any site needing plan approval.	Engineer's fee

18 AAC 72.400; 72.511(a), (b), (c); 72.410(a), (b); 72.954(c) — "a training fee of \$275." Even on the homeowner route the soils must be classified by **a registered engineer or a soils laboratory** — 72.511(c)(2) requires either a sieve analysis of a collected sample or an engineer's on-site visual classification with a percolation test. A percolation test is mandatory in silty soils (SM, GM, ML) and unnecessary in clean sands (72.530(f)(3) note a).

THE NUMBERS ALASKA FIXES STATEWIDE

These apply to every conventional system in the state, including one you install yourself with no permit and no inspector. They are worth knowing **before you buy a lot**, because a parcel that cannot hold them is a parcel you cannot build on.

Separation distances — statewide, mandatory

Distance	From what, to what	Authority
100 feet	Between a private well and a septic tank, absorption field, sewer line, holding tank, pit privy, or <i>"other potential source of contamination,"</i> measured nearest edge to nearest edge. (A well serving a <i>public</i> system needs 200 feet — 18 AAC 80.020 Table A.)	18 AAC 72.100(a)(1)
100 feet	Between a septic tank, absorption field, lift station or sewer manhole and the high water level of a lake, river, stream, spring or slough . Read "slough" broadly — the definitions section includes a swamp, bog, or marsh , which on an Alaska parcel is often most of it.	18 AAC 72.520(b); 72.990(91)
4 feet	Vertical, from the bottom of the distribution media down to the annual high water table .	18 AAC 72.520(d)(1)
6 feet	Vertical, down to an impermeable horizon — bedrock, clay, permafrost , or soils percolating slower than 120 minutes per inch.	18 AAC 72.520(d)(2)

Separation distances — statewide, mandatory

Distance	From what, to what	Authority
50 feet	Horizontal, between any part of the absorption field and a slope steeper than 25 percent with a vertical drop over 10 feet, natural or man-made.	18 AAC 72.520(c)

And the setback Alaska does NOT have — which is worth as much as the ones it does

There is **no state property-line setback and no state foundation setback** for a septic system. 18 AAC 72.520 was read in full and contains neither. DEC's installation manual lists 10 feet to a lot line and 10 feet to a foundation, and footnotes both as a "*Recommended minimum horizontal separation distance*" — guidance, not law.

Inside the **Municipality of Anchorage** those same 10 feet *are* mandatory, along with a 20-foot setback from smaller slope breaks and seasonal groundwater adjustment factors, under AMC 15.65.210. That is the shape of the whole Alaska problem in one paragraph: the state floor is thinner than people assume, and a delegated local program can be markedly thicker. Build to the recommended 10 feet anyway — it costs nothing at layout and it protects your resale.

Sizing. Design flow is **150 gallons per day for each bedroom** (18 AAC 72.530(b)(1)). Minimum septic tank for a house of up to three bedrooms is **1,000 gallons**, plus **250 gallons for each bedroom over three** (72.530(e)(2)). Absorption field area comes off a table keyed to percolation rate and soil class, taking whichever is more conservative (72.530(f)(3)). **In clean gravels a two-foot sand liner is mandatory** unless the percolation rate is slow enough to stand on its own — ground that drains too fast fails for the opposite reason to ground that drains too slowly, and people are surprised by it (72.530(f)(3)). And the cover over the field is a climate figure: **2 feet** of soil in southwest Alaska, **3 feet** in Southeast and the coast south and east of Valdez, and **4 feet** in "*all remaining areas of the state*" (72.530(c)) — approved insulation may substitute for up to two of those feet, but never below two feet of actual soil.

Permafrost does not just complicate the system — it disqualifies the easy route

Every no-plan-approval route above is conditioned on 18 AAC 72.511(d), and subsection (d)(4) is the cliff. An exempt system "*may not be located in an area (A) **known or suspected to contain permafrost**; (B) where other conventional onsite wastewater systems have been known to perform poorly; (C) where the groundwater table is within four feet of the ground surface or the soil conditions are overly moist or wet at any time of the year.*"

Note the standard: **suspected**, not proven. If your ground is under suspicion you are out of the homeowner and certified-installer routes entirely, into engineer design and DEC plan approval — and 18 AAC 72.265(6) then requires **a laboratory soil-moisture profile analysis** showing the soils are adequately drained *and* **a geotechnical study** showing the area *"will remain stable under the proposed design."*

This is the strongest argument in the kit for buying the geotechnical report early. In permafrost country it is not only your foundation that depends on it — it decides whether your septic system costs three thousand dollars or thirty, and it decides it before you have spent anything else.

WHAT YOU FILE, AND WHEN

There are two entirely different paper trails and they are commonly confused. Establish which one you are on before you dig.

Two paper trails — find out which is yours before you dig

Path	What you file	Fee
No plan approval needed the ordinary house	Before: notify DEC <i>"at least one day before beginning construction,"</i> on the department's form (72.550(a)). After: within 90 days , register the system with a completed Documentation of Construction — signed or sealed, plus photographs of eight specified stages of the installation, plus the \$115 registration fee (72.550(c); 72.955(a)).	\$115
Plan approval needed alternative systems, permafrost, waivers	Before: an Approval to Construct — that is the regulation's own name for it. DEC acts within 30 days of a complete submittal, and the approval is void if the work is not finished within 2 years (72.225). After: within 60 days , a certification of construction signed by the owner, each contractor and the observing engineer, plus record drawings (72.240(c)).	\$655 plan review, to 1,500 gpd

Photograph the open trench, or you cannot register the system

Of everything in this kit, this is the instruction most likely to save you money and the easiest to miss. The 90-day Documentation of Construction requires **photographs of eight specified stages** — and the ones that matter are the stages that exist for a few hours: **the open excavation of the absorption field**, and **the field with its media and pipe in place just before backfill**. Once the machine has covered it, the photograph cannot be taken and the registration cannot be completed on the ordinary route.

Put a phone in someone's hand before the excavator arrives. Shoot more than you think you need — the tank with its inlet and outlet, the cleanouts, the fabric, the standpipes, the finished grade. It costs nothing and it is the difference between a \$115 filing and an engineer's report on a buried system.

The ninety days is the cheapest deadline in this kit

Miss the 90-day registration and the fix is not a late fee. It is an **after-the-fact registration** under 18 AAC 72.560, which requires an **engineer-sealed adequacy report** on a system that is already buried. The same paperwork that costs **\$115** and an afternoon on time costs an engineer's site visit and report later — and you will need it, because DEC keeps the record and any future buyer or lender can pull it for a \$25 retrieval fee (72.955(b), (c)).

Route (homeowner / installer / engineer): _____ DEC notified: _____

Documentation of Construction filed: _____ Registration no. / date: _____

Step 2 — Wastewater

	Item	Date	Notes / who confirmed
☐	Established which office regulates onsite wastewater for your parcel — DEC, or a delegated program such as the Municipality of Anchorage's On-Site Water and Wastewater Section Office: _____ Confirmed: _____		
☐	Route chosen and, if you are installing it yourself, DEC's homeowner training course completed and the \$275 approval in hand before you start — it authorizes one system in a one-year period Approved: _____ Expires: _____		
☐	Soils classified by a registered engineer or a soils laboratory, and a percolation test done where the soil class requires one By: _____ Date: _____		
☐	Seasonal high water table established from monitoring between June 1 and September 30 , or by another method the reviewer accepts — a winter reading does not establish it Method: _____ Result: _____		
☐	Site checked against the statewide separations above — 100 feet to the well, 100 feet to any lake, stream, spring, swamp, bog or marsh, 4 feet to the water table, 6 feet to bedrock or permafrost, 50 feet from a steep slope		

Step 2 — Wastewater

	Item	Date	Notes / who confirmed
☐	Permafrost ruled in or out. If suspected, you are on the engineer and plan-approval route and need a soil-moisture profile and a geotechnical study		
☐	DEC notified at least one day before construction begins Notified: _____		
☐	Documentation of Construction filed within 90 days , with the eight required photographs and the \$115 fee — or the engineer's certification of construction within 60 days on the plan-approval route Filed: _____ Copy kept: _____		
☐	Reserve area protected from traffic and stockpiling for the whole build		
☐	If a holding tank or a pit privy is your plan, you have confirmed the conditions in writing — a privy needs no DEC approval but must meet 18 AAC 72.030; a holding tank is an alternative system and needs an engineer Confirmed: _____		

STEP 2b — THE WELL, AND THE ONE FILING THAT IS MANDATORY

Alaska requires no state permit to drill a private domestic well. The drinking water regulations, 18 AAC 80, apply to *public* water systems; a single-family well is a "private water system" and sits outside them, and DEC's own guidance for private systems says in terms that "*application of these BMPs is voluntary.*" Do not let anyone tell you the construction standards are mandatory — with one real exception, below.

- **The separations are mandatory.** The 100-foot distances in 18 AAC 72.100(a) bind your well whether or not anyone permits it, and there is a 25-foot distance to a private sewer line, a building sump, and a fuel tank or line.
- **The construction method is effectively mandatory.** 18 AAC 72.100(c): a person who drills or operates a private well "*must use a method equivalent to well protection or source water protection contained in 18 AAC 80 or the publicly identified approved best management practice.*" So the standards arrive by cross-reference even though the permit does not.
- **The well log is mandatory, and it is on whoever drills.** 11 AAC 93.140(a): "*the water well contractor or a person who constructs the well shall file a report within **45 days** after completion with **both the property owner and the department.***" Filed with the

Department of Natural Resources through its Well Log Tracking System. Drill it yourself and the duty is yours. **Get your copy at the time, then search the tracking system a couple of months later and confirm the filing actually landed** — your lender and your buyer will both want it, and a driller who never filed is a problem you want to find now rather than at closing.

- **A water right is usually not needed.** An application is required before consuming more than 5,000 gallons in a single day, or regularly using more than 500 gallons per day for more than 10 days a year (11 AAC 93.035(b)). DNR's standard quantity for a fully plumbed single-family home is **500 gallons per day** (11 AAC 93.040(d)(1)) — an ordinary house sits at or below the line. A water right is optional priority protection, not a permit to drill.

Test for arsenic, whatever anyone tells you about permits

No Alaska statute requires a private well to be tested. DEC recommends a baseline for **total coliform, nitrate and arsenic** after the well is disinfected and flushed, against 0 per 100 mL, 10 mg/L and 0.010 mg/L. The arsenic line is not theoretical here: the State Section of Epidemiology has documented private wells in the Fairbanks area at up to **960 parts per billion**, roughly a hundred times the drinking-water standard, and reports that arsenic in private wells "*is a known problem in some communities*" there.

Carbon filters and water softeners do **not** remove arsenic. Reverse osmosis does. Test before you plumb, not after — and inside the Municipality of Anchorage you will be tested at resale anyway, for coliform, arsenic and nitrate together.

*18 AAC 80.005(b) and 18 AAC 80.1990 (private water system definition); DEC, Best Management Practices for Private Drinking Water Systems; 18 AAC 72.100(a), (c); 11 AAC 93.140(a); 11 AAC 93.035(b); 11 AAC 93.040(d)(1); Alaska Section of Epidemiology, Bulletin 2016-14. Note the Municipality of Anchorage is different on both counts — a new well there needs a municipal permit under **AMC 15.55**, and a septic design there must always be sealed by a registered civil engineer (AMC 15.65.050D.3). Confirm the current subsection with the On-Site Water and Wastewater Section; sources differ on it.*

STEP 3 — THE BUILDING ITSELF

Nothing in this step is required by an Alaska permit unless a local department issues you one. Every item is here because the building needs it, or because somebody who is going to lend against, insure or buy the house will ask for it later.

Step 3 — Design and construction documents

	Item	Date	Notes / evidence
☐	Structural design appropriate to your seismic and snow loading, by an engineer registered in Alaska. Alaska is the most seismically active part of the United States and roof snow loads vary sharply with elevation over short distances Engineer: _____ Sealed: _____		

Step 3 — Design and construction documents

	Item	Date	Notes / evidence
☐	Foundation design matched to the geotechnical report — and if that report identifies ice-rich permafrost, a foundation type chosen to keep the ground frozen rather than to resist settlement Type: _____ Basis: _____		
☐	Full plan set and specifications, kept as a record even where nobody reviews them — you will need them for the appraisal, the insurance binder and the eventual sale		
☐	Energy design fixed early: envelope, air barrier detail and a balanced ventilation strategy chosen together. In this climate an airtight house without balanced ventilation is a moisture failure waiting to happen Ventilation: _____ Design by: _____		
☐	If any part of the build is financed, the lender's construction standard obtained in writing before you draw — see Step 4 Standard: _____ Received: _____		
☐	Materials ordered against the season, not the schedule: long-lead items and anything shipped by barge or air ordered over the winter		

STEP 4 — THE CODE THAT ARRIVES THROUGH THE MORTGAGE

This step has no equivalent in a Lower 48 permit kit, and for a financed Alaska owner-builder it is the most consequential page in the whole product. Alaska has no building code for houses — **and it enforces one anyway, through loan eligibility instead of a permit counter.**

Be precise about what this is, because the popular version of it is wrong. It is not "your lender's rules." It is **state law**. The Alaska Housing Finance Corporation is a public corporation of the state, and two statutes bar it from lending on a house that was not built to a standard the state sets. The enforcement mechanism is the mortgage; the standard is statutory.

The two statutes, and the two dates they turn on

Inspections. AS 18.56.300(a): the corporation "*may not make or purchase a housing loan for residential housing the construction of which begins **after June 30, 1992***" unless it is inspected — and subsection (b) names the stages: "(1) *plan approval*; (2) *completion of footings and foundations*; (3) *completion of electrical installation, plumbing, and framing*; (4) *completion of installation of insulation*; (5) *final approval*." Five inspections, in statute.

Energy. AS 46.11.040: "*State financial assistance may not be approved or granted for the construction of or purchase of a loan for a residential building if construction of the building began **after December 31, 1991**, unless ... the building is in compliance with thermal and lighting energy standards,*" with a parallel bar on AHFC itself at AS 18.56.096(c). Those standards are the **Building Energy Efficiency Standard — BEES**.

Two different dates, six months apart. The energy duty attaches to construction begun after 31 December 1991; the inspection duty to construction begun after 30 June 1992. They are separate obligations from separate statutes and nothing lets you satisfy one by satisfying the other.

Which code? 15 AAC 150.035(a) adopts the **2018 International Residential Code with Alaska-specific amendments** as "*the residential building code for buildings used for residential purposes containing four or fewer dwelling units*" — and, in the sentence that matters most to this kit's reader, applies it "*to a residential unit that is **not located within a municipality that has an approved municipal building code***." It is drafted precisely for the ungoverned parcel. BEES itself is the **2018 IECC plus ASHRAE 62.2-2016 plus Alaska amendments**, adopted at 15 AAC 155.010 and applying to buildings whose construction began on or after 1 January 2019, with a minimum **5 Star** energy rating and a maximum **4 ACH50** air leakage rate.

Read the amendment that gives this chapter its shape

AHFC's amendments to the IRC **delete Chapter 1, Part 2 — Administration and Enforcement**: the permit system, the inspection card, the certificate of occupancy, the whole apparatus by which a building department normally operates a code. What replaces it is a recorded certificate. And the BEES amendment document defines its own enforcer in terms — "*CODE OFFICIAL. The officer or other designated duly authorized representative of AHFC.*"

The financier is the building official. That is the single sentence this chapter exists to deliver.

What proves it. Two forms, and you should know their numbers before you start. **PUR-101** is the BEES certification, completed only by an AHFC-authorized energy rater using the state's AkWarm modeling software — you cannot self-certify it. **PUR-102** is the Summary of Building Inspections, signed stage by stage by an authorized inspector and then **recorded**; AHFC states that recording it "*is the only means of tracking compliance with the law.*" A certificate of

occupancy from an **approved municipality** substitutes for the PUR-102 — which is why the list of approved municipalities matters enormously, and why it is not the list you would guess: **Wasilla and the Mat-Su Borough outside Palmer city are not on it.**

The part that reaches you even if you never borrow a dollar

Suppose you pay cash, skip the inspections, and build a sound house. Nothing happens — until you sell. Your buyer wants an AHFC-backed loan, and AHFC may not purchase a loan on a house built after June 1992 that was never inspected. **The obligation was yours; the consequence lands on your buyer, which means it lands on your price.**

The remedy exists and it is ugly: a **destructive inspection**, accepted case by case — holes cut in finished sheetrock, an engineer and an inspector engaged, a notarized certification recorded after the fact. Compare that with five inspections scheduled while the walls are open.

So the honest framing is not "comply if you are borrowing." It is: **the five inspections are the cheapest resale insurance available to an Alaska owner-builder**, and they are cheapest on the day the stage is open. If you are building outside an approved municipality, this is the decision to make before footings, not after drywall.

*AS 18.56.300(a), (b); AS 46.11.040; AS 18.56.096(c); 15 AAC 150.035(a); 15 AAC 155.010; AHFC New Construction Inspection Guidelines and the Building Energy Efficiency Standard pages at ahfc.us, read August 2026. 15 AAC 150.040(b) allows a loan where the borrower "agrees, in writing, to bring the building into compliance ... within one year." **Do not cite AS 18.56.300(e)(3) for the code edition** — its text still names the old Uniform Building Code; the regulation controls. The 5 Star floor comes from the adopted amendments and AHFC's own published standard, not from 15 AAC 155.030(a)(1), which still reads "four-star plus."*

Owner-builders are expressly accommodated, and it is written into the statute. AS 18.56.096(a)(3) requires the work to be done by a registered contractor — then excepts work that "(A) has been totally or substantially performed by the borrower; (B) has been performed by a borrower who acts as the contractor ...; or (C) has been performed in an area designated by the corporation as exempt ... because of the unavailability of registered contractors." The PUR-102 itself carries an **Exempt Builder's Certification** on which you certify that you qualify under AS 08.18.161 and, if you are an owner-builder under paragraph (11), "*that I have not built a single family building, duplex, triplex, fourplex or commercial building within the prior two years.*" **The two-year rule in AK.1 follows you onto the mortgage paperwork.** You skip the contractor credential; you do not skip the inspections or BEES.

If your loan is federal rather than state — FHA's answer to the same problem

HUD faced the identical question and answered it in Mortgagee Letter 2020-36. For proposed new construction the file needs *"copies of the building permit (or equivalent) and CO (or equivalent); **or** three inspections (footing, framing and final) performed by the local authority with jurisdiction over the Property or an ICC certified RCI or CI ...; **or** in the absence of such ICC certified RCI or CI ... three inspections ... performed by a disinterested third-party, who is a registered architect or a structural engineer."* HUD's own note on the change: it is *"particularly relevant in jurisdictions where building permits are not issued."*

Two things you will still be told that are no longer true: the ten-year insured protection plan option and the 90 percent loan-to-value cap that went with it were **eliminated**. Anyone offering you a ten-year warranty as the FHA workaround is working from a superseded handbook.

Step 4 — Financing, inspections and the standard they impose

	Item	Date	Notes / who confirmed
☐	Established whether your parcel is inside an AHFC-approved municipality — if it is, a certificate of occupancy substitutes for the inspection summary; if it is not, you must arrange the inspections yourself Approved municipality? Y / N: _____ Confirmed: _____		
☐	Five inspections scheduled before footings — plan approval; footings and foundations; electrical, plumbing and framing; insulation; final. Each one is cheap while the stage is open and expensive afterwards Inspector: _____ Booked: _____		
☐	AHFC-authorized inspector identified and available in your area — in a community with no ICC-licensed inspector, ask about the video and photograph allowance and get the approval in writing in advance Name: _____ Confirmed: _____		

Step 4 — Financing, inspections and the standard they impose

	Item	Date	Notes / who confirmed
☐	Energy rater booked and the PUR-101 path understood — only an AHFC-authorized rater can complete it, and raters are scarce off the road system Rater: _____ Booked: _____		
☐	PUR-102 recorded at the end, not merely completed — recording is how compliance is tracked Recorded: _____ Book/page: _____		
☐	Designed to BEES from the start — 2018 IECC with Alaska amendments, minimum 5 Star rating, maximum 4 ACH50. Retrofitting an envelope to a rating is not possible after drywall Target rating: _____ Modeled by: _____		
☐	If you are borrowing federally rather than from AHFC, the lender's inspection route confirmed in writing — permit and CO, three inspections by an ICC-certified inspector, or three by an architect or structural engineer Route: _____ Confirmed: _____		
☐	Builder's risk insurance bound before materials arrive on site, and the carrier's requirements for an owner-built dwelling understood Carrier: _____ Bound: _____		
☐	Homeowner's policy pre-qualified — ask now what the carrier will want at completion where no certificate of occupancy exists Carrier: _____ What they want: _____		
☐	Workers' compensation in place if you will pay anyone as an employee rather than engaging a registered contractor Policy: _____ Effective: _____		

The money that flows the other way — and reaches a cash build

Two AHFC programs pay you for going past the floor, and one of them does not require an AHFC loan at all. The **New Home Construction Rebate is \$10,000**, first-come until the funds are gone, for reaching **5 Star Plus** — a notch above the BEES minimum, so keep the two figures distinct — with the foundation inspected on or after 2 January 2025. **AHFC financing is not required**, which makes it a second reason for a cash builder to run the inspections.

The **Energy Efficiency Interest Rate Reduction** cuts the rate on the first **\$250,000** of an AHFC loan — roughly a quarter to a half point depending on the rating and whether natural gas is available. Both are first-come and both change; confirm current terms at ahfc.us while you are still designing, because both are keyed to decisions you make before footings.

*AS 18.56.096(a)(3); 15 AAC 155.020 (the only two BEES exemptions); AHFC PUR-101 and PUR-102 and the New Construction Inspection Guidelines; AHFC rebate and interest-rate-reduction program pages, read August 2026 — **both are funding-dependent, so confirm before relying on either.** HUD Mortgagee Letter 2020-36, amending Handbook 4000.1 II.A.8.i, mandatory for case numbers assigned on or after 4 January 2021; new construction there also needs HUD forms 92541, 92544 (a **one**-year warranty) and 92051.*

STEP 5 — ONLY IF A BUILDING DEPARTMENT ISSUES YOUR PERMIT

Where a borough or city does review your house, its own application governs and its requirements are additional to everything above. The items below are the ones that most often send an Alaska applicant back to the counter.

Step 5 — The local application

	Item	Date	Notes / who confirmed
☐	Adopted code editions confirmed <i>for that jurisdiction</i> — they are local adoptions and they differ from each other and from the state minimums Building: _____ Electrical: _____ Plumbing: _____		
☐	Plan sets in the number and scale the department requires, including a site plan showing every structure on the parcel		
☐	Structural calculations, sealed where that jurisdiction requires them — several Alaska jurisdictions require them for an ordinary house because of seismic design category		
☐	Surveyed plot plan where required — a sketch is commonly rejected		

Step 5 — The local application

	Item	Date	Notes / who confirmed
☐	Energy compliance documentation in the form that jurisdiction accepts Form: _____ Method: _____		
☐	Wastewater approval attached — most departments will not issue a building permit without it		
☐	Separate trade permit applications identified, and who pulls each one settled before you file Electrical by: _____ Plumbing by: _____		
☐	Fees, and the permit expiry rule for that jurisdiction, written down. Expiry clocks run on inspections, and an Alaska winter is exactly the gap that trips them Fee: _____ Expires: _____ Renewal: _____		

Sources — every Alaska claim in this document (verified August 2026)

What this document states	Authority
Smoke alarms in all dwelling units in the state, and CO alarms in all qualifying units, installed as the fire marshal approves	AS 18.70.095(a), (d)(3)
NFPA 72-2019 and IBC 907.2.11; battery-only alarms permitted only in pre-1989 buildings or buildings without commercial power	13 AAC 50.030(b)
Enforced as a class B misdemeanor with each 10 days a separate offense; the carbon monoxide provision is a non-criminal violation	AS 18.70.100(a), (c)
The Fire Marshal's authority reaches residential buildings of four or more dwelling units, and the adopted code excludes detached one-, two- and three-family dwellings	AS 18.70.080(a)(2); 13 AAC 50.020
2020 NEC is the state minimum electrical code; 2018 UPC is the minimum plumbing standard throughout the state	8 AAC 70.025(a); 8 AAC 63.010(a)(1)
Communities under 2,500 population are exempt from the state plumbing chapter	AS 18.60.735
Lead limits of 8.0 percent in pipe and fittings and 0.2 percent in solder or flux in a residential facility providing water for human consumption	AS 18.60.705(b)
Onsite wastewater is regulated statewide by the Department of Environmental Conservation, or by a delegated local program	18 AAC 72

*Read any statute or regulation cited above free at **akleg.gov** → Bills & Laws → Alaska Statutes for an **AS** citation, or → Alaska Administrative Code for an **AAC** citation. Both are searchable by number — type 08.18.161 or 18 AAC 72 into the section box. Every quotation here was read there and verified August 2026 against the Alaska Statutes 2025 compilation.*